

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: December 16, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

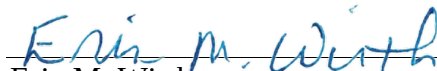
ORDER REQUIRING JOINT STATUS REPORT

The Federal Maritime Commission (“Commission”) initiated this proceeding on December 30, 2021, by issuing an Order of Investigation and Hearing (“OIH”) and requiring that the proceeding be handled in an expedited fashion. OIH at 7. On June 7, 2022, an order was issued, denying a request to approve a settlement agreement but permitting the parties to file an interlocutory appeal. On December 15, 2022, the Commission issued an Order Affirming Denial of Joint Settlement Motion (“Remand Order”), remanding the proceeding and requiring an initial decision within four months.

This continues to be an expedited proceeding with limited time to complete discovery, file briefing on the merits, and prepare an initial decision. Therefore, “all deadlines will be shortened to half the time allowed by the Rules, rounded up. So, a seven-day deadline, for example to respond to a non-dispositive motion, is shortened to four days.” January 6, 2022, Initial Order.

The parties are required to confer and file a joint status report with a proposed schedule for resolving the proceeding within the time permitted. The parties are also required to discuss whether a settlement of this proceeding that comports with regulatory requirements is possible. The parties should state in the joint status report whether they have discussed settlement, but they should *not* provide their positions on settlement. If the parties are able to resolve this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement. As a reminder, filings should be sent to the Office of the Secretary at secretary@fmc.gov, with a courtesy copy sent to judges@fmc.gov, and with opposing parties copied.

For the reasons set forth above, the parties are hereby **ORDERED** to confer and to file a joint status report with proposed schedule by December 23, 2022.


Erin M. Wirth
Chief Administrative Law Judge